FEDERAL LEGISLATIVE TRANSPARENCY & ACCOUNTABILITY ACT

Citizen legislative proposal | Congressional voting explanations, major amendments, and presidential veto disclosures

Prepared by
Courtney Francis
South Carolina constituent

Submitted for consideration by members of the United States Senate and House of Representatives

A proposal for public access to the reasons, evidence, proposed changes, and constituent impacts behind federal legislative decisions.

Draft for legislative consideration — not an introduced bill or enacted law.

COVER LETTER

To: The Honorable Member of Congress
Re: Request for consideration — Federal Legislative Transparency and Accountability Act

Dear Senator or Representative,

I am writing as a South Carolina constituent to request your consideration of the enclosed citizen legislative proposal, the **Federal Legislative Transparency and Accountability Act**.

Public voting records tell citizens how their elected representatives voted, but do not consistently explain why. I believe constituents should be able to understand the reasoning, evidence, anticipated consequences, and alternatives behind decisions made on their behalf.

My proposal asks Congress to establish a consistent disclosure process for final votes on bills and major amendments. When sufficient notice exists, a member would publish a short statement before voting. Within seven calendar days after a covered vote, the member would provide a fuller explanation, including relevant statistics and their sources, effects on the state or district represented, and proposed improvements or alternative legislation. Emergency and expedited votes would receive a practical exception to advance disclosure, but not to subsequent explanation.

The proposal also requests more detailed public explanations of presidential vetoes, while expressly preserving constitutional veto authority. The judicial branch is outside its scope.

This proposal is not intended to dictate how anyone votes. Its purpose is to help citizens evaluate the decisions of those elected to represent them. I recognize that implementation would require careful consideration of each chamber's rulemaking authority, constitutional separation of powers, administrative burden, and enforcement mechanisms.

I respectfully ask your office to review the enclosed framework, advise whether you would consider sponsoring or developing appropriate legislation or chamber rules, and identify any constitutional or practical concerns. I would appreciate a written response and, if possible, an opportunity to discuss the proposal with legislative staff.

Thank you for your consideration and public service.

Sincerely,
Courtney Francis
South Carolina constituent
Email / telephone: _____

EXECUTIVE SUMMARY

Proposal: Establish a standardized, publicly searchable explanation process for covered congressional votes and expanded public disclosures regarding presidential vetoes.

The problem this proposal seeks to address

A recorded vote establishes a position, but does not necessarily identify the reasoning, relevant data, specific objections, or alternative policy a representative favors. The proposal seeks to make those explanations easier for constituents to find and compare.

Core requirements

- **Before a scheduled vote:** A concise intended-position statement, ordinarily at least 24 hours before final passage or a major amendment vote when the text and schedule permit.
- **After the vote:** A more comprehensive report within seven calendar days explaining the final vote, relevant statistics and sources, material uncertainty, constituent impacts, recommended changes, and alternatives where applicable.
- **Major amendments:** Coverage of substantive amendments affecting spending, legal rights, state or local responsibilities, or the purpose of a bill.
- **Emergencies:** Documented exceptions to advance notice, while preserving post-vote disclosure.
- **Presidential vetoes:** Publicly accessible details about objections, evidence, state impacts where assessable, and potential revisions or alternatives, without conditioning veto validity on a report.
- **Public access:** A permanent, free, searchable record linked to official votes and legislation.

Implementation approach

Congress should evaluate a combination of House and Senate rules, any appropriate statutory provisions, and constitutionally permissible executive-branch disclosure procedures. The final legal form should be developed with legislative counsel.

Requested congressional action

Review the proposal; identify procedural and constitutional considerations; consider sponsorship or referral for development; and provide a substantive response to the constituent submitting it.

PROPOSED LEGISLATIVE FRAMEWORK

Working title: Federal Legislative Transparency and Accountability Act
Status: Citizen proposal for review and drafting; not formal bill text.

Section 1. Purpose

To strengthen public understanding and accountability by providing accessible explanations of federal legislative decisions, supporting evidence, anticipated constituent impacts, and potential alternative approaches.

Section 2. Scope and covered votes

The congressional disclosure framework would apply to recorded final-passage votes in the House and Senate and to recorded votes on major amendments. A major amendment would include a substantive change to federal spending or revenue, individual rights or obligations, state or local responsibilities, or a bill's principal purpose or implementation. Each chamber would establish workable classification procedures.

Section 3. Preliminary statement

When the final text and voting schedule provide reasonable notice, each member would publish a brief statement of intended voting position, principal reasons, and proposed additions, removals, or changes. The target publication time would be at least 24 hours before the vote. Members would remain free to change positions, and preliminary statements would not bind their final votes.

Section 4. Comprehensive post-vote explanation

Within seven calendar days after a covered vote, each member would publish a statement addressing:

- The final voting position and principal reasons, with references to relevant provisions;
- Relevant statistics, research, fiscal estimates, or legal analysis and identifiable sources, when available;
- Expected effects on the member's state or congressional district, including potential costs, benefits, and unintended consequences;
- Specific provisions the member would add, remove, or amend, or an explanation that no changes are recommended;
- Existing or proposed alternative legislation or policy approaches, where applicable;
- Important gaps, uncertainty, assumptions, or limitations in the evidence.

Section 5. Emergency and expedited votes

Where genuine emergency circumstances, substantial late amendments, or insufficient notice make advance publication impracticable, the preliminary statement may be waived. The reason for waiver should be documented publicly. The post-vote report would remain required, subject to narrowly tailored operational exceptions established by the relevant chamber.

Section 6. Presidential veto disclosures

For regular vetoes, the President would be requested, through constitutionally appropriate procedures, to publish an expanded explanation alongside the veto message where practicable or within seven calendar days afterward. A comparable public explanation would be requested following a pocket veto. The report would identify principal objections, affected provisions, relevant evidence and sources, reasonably assessable effects on states, proposed changes, and alternative approaches where applicable.

This proposal would not change constitutional veto deadlines, the validity of a veto, or Congress's override power. Legislative counsel should assess the permissible mechanism and enforceability of any additional presidential disclosure obligation.

Section 7. Public access and record preservation

Statements should be published without charge in an accessible, searchable system linked to the corresponding bill, amendment, member, recorded vote, and date. Original and revised explanations should be retained with timestamps so the public can understand changes in position.

Section 8. Compliance and independence

A missing required congressional explanation should be clearly marked in the public record. Each chamber would determine appropriate procedural oversight consistent with its constitutional authority. Compliance review should focus on submission and required disclosure categories, not agreement with the political conclusions expressed. No member would be compelled to fabricate unavailable data or prevented from changing a vote.

Section 9. Implementation and administrative feasibility

Each chamber should determine practical reporting formats, support for accessibility, treatment of classified or legally protected information, procedures for corrections, and administrative resources. Templates and links to existing analyses may reduce repetitive reporting. The proposal should not automatically delay a vote or invalidate legislation because a report is missing.

Section 10. Constitutional and drafting review

Before introduction, congressional legislative counsel should review the interaction with Article I chamber rulemaking powers, Article I presidential veto provisions, separation of powers, and any other applicable constitutional protections. The framework may require more than one legal instrument.

Guiding principle: Citizens should be able to understand not only how their elected representatives voted, but why, on what evidence, and with what anticipated consequences for the people they represent.

SUBMISSION CHECKLIST

- Address the cover letter to each senator or representative individually.
- Add a preferred email address or telephone number for follow-up.
- Submit the cover letter and attach this packet using each official congressional contact channel, subject to attachment restrictions.
- Keep a copy of each submission and its date.
- If no substantive response arrives, follow up with the office and request review by legislative staff.

Official contact directories

U.S. Senate: https://www.senate.gov/senators/senators-contact.htm

U.S. House: https://www.house.gov/representatives/find-your-representative

Reference points for legal review

U.S. Constitution, Article I, Section 5 (rules of each chamber); Article I, Section 7 (presidential veto procedure).

U.S. Constitution: https://constitution.congress.gov/constitution/

Congressional Record and legislative information: https://www.congress.gov/

Document note

This is a constituent policy proposal, not legal advice or a representation that a bill with this title has been introduced. The proposed deadlines, coverage, and enforcement mechanisms are recommendations for congressional consideration.